ROB BONTA, State Bar No. 202668
Attorney General of California
ELIZABETH S. ANGRES, State Bar No. 179523
Supervising Deputy Attorney General
HAIYANG A. LI, State Bar No. 288063
Deputy Attorney General
300 South Spring Street, Suite 1702
Los Angeles, CA 90013-1230
Telephone: (213) 269-6404
Fax: (916) 731-2120
E-mail: Haiyang.Li@doj.ca.gov
Attorneys for Defendants
State of California, acting by and through the California Highway Patrol, Santiago Meza-Gonzalez and Jose Melano

IN THE UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **STATE OF CALIFORNIA; CALIFORNIA HIGHWAY PATROL; OFFICER SANTIAGO MEZA-GONALEZ (#023295); OFFICER MELANO (#023054),** Defendants.	Case No. 2:25-cv-01460-DC-CSK **DEFENDANTS' NOTICE OF MOTION AND MOTION TO DISMISS COMPLAINT WITH MOTION TO STRIKE; MEMORANDUM OF POINTS AND AUTHORITIES** Date: January 16, 2026 Time: 1:30 p.m. Courtroom: 10 Judge: District Judge Dena Coggins Trial Date: Not Set Action Filed: May 27, 2025

NOTICE IS HEREBY GIVEN that on January 16, 2026, at 1:30 p.m., in Courtroom 10 of the above-entitled Court, located at 501 "I" Street, Sacramento, California, Defendants State of California, Santiago Meza-Gonzalez and Jose Melano (collectively "Defendants") will and hereby do move this Court for an order dismissing Plaintiff's Complaint, with prejudice, on the following grounds:

1. Pursuant to Federal Rule of Civil Procedure 12(b)(6) to dismiss all claims against them on the grounds that Plaintiff fails to state a valid cause of action;
2. Defendants Meza-Gonzalez and Melano are entitled to Qualified Immunity in their individual capacities and are therefore not liable for any of the causes of action contained in Plaintiff's Complaint;
3. Plaintiff's official capacity claims against Defendants Meza-Gonzalez and Melano and *Monell* liability claim against the State fail as a matter of law because the State is not a "person" under 42 U.S.C. section 1983 and because such claims are barred by the Eleventh Amendment;
4. Plaintiff's prayer for punitive damages against the individual defendants and for attorneys' fees should be stricken as there are no facts to support an award of punitive damages and Plaintiff is not entitled to attorneys' fees under 42 U.S.C. section 1988 as a pro se litigant.

The parties did not meet and confer prior to filing this Motion as Plaintiff is proceeding pro se.

Dated: December 10, 2025

Respectfully submitted,

ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General

/s/Haiyang Allen Li

HAIYANG A. LI
Deputy Attorney General
Attorneys for Defendants
State of California, acting by and through the California Highway Patrol, Santiago Meza-Gonzalez and Jose Melano

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

This case involves a search of Plaintiff Brendan Newanforbi's ("Plaintiff") vehicle and the subsequent arrest of Plaintiff for driving under the influence ("DUI"). Plaintiff alleges that the CHP officers began a DUI investigation and arrested Plaintiff for driving under the influence after searching Plaintiff's vehicle without probable cause or a warrant while Plaintiff was resting in his car on the on the side of Interstate 580 East. Plaintiff further alleges that the arrest triggered a parole violation hold and that he feared for his safety while in custody awaiting arraignment.

Based upon the above, Plaintiff filed suit against Defendant State of California, by and through the California Highway Patrol ("Defendant CHP"), and CHP Officers Santiago Meza-Gonzalez ("Defendant Meza-Gonzalez") and Jose Melano ("Defendant Melano") (collectively "Defendants"). While the Complaint fails to specify which causes of actions are brought against which defendants, the Complaint states that Defendant Meza-Gonzalez and Defendant Melano are sued in both their individual and official capacities. The Complaint contains three causes of action all brought pursuant to 42 U.S.C. section 1983, alleging unreasonable search and seizure, violation of due process, and a *Monell* liability claim.

This Motion to Dismiss with Motion to Strike is brought on behalf of all Defendants pursuant to Federal Rules of Civil Procedure 12(b)(6) and 12(f). Defendants Meza-Gonzalez and Melano should be granted qualified immunity for Plaintiff's claims against them in their individual capacities as no constitutional violation occurred and/or the law is not clearly established regarding the particularized allegations in this case.

Plaintiff's official claims against Defendants Meza-Gonzalez and Melano and *Monell* liability claim against the State likewise fail as a matter of law because such claims are barred by the Eleventh Amendment and the State is not a "person" under 42 U.S.C. section 1983.

Plaintiff's prayer for punitive damages and attorneys' fees should be stricken as the Complaint fails to allege any facts supporting an award of punitive damages and Plaintiff is not entitled to attorneys' fees as a pro se litigant.

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II. BACKGROUND FACTS

According to the Complaint, in the early morning hours of November 1, 2024, Plaintiff was resting in a rental Tesla on the shoulder of Interstate 580 after feeling fatigued. (ECF No. 1 Complaint, ¶ 10.) CHP Officers Meza-Gonzalez and Melano came up to Plaintiff's vehicle and, upon observing a cup in the center console, stated: "I think it's booze." (*Id.* at ¶ 11.) The officers proceeded to order Plaintiff out of his vehicle, questioned Plaintiff, and subjected Plaintiff to field sobriety tests. (*Id.* at ¶ 14.) Plaintiff was then placed in handcuffs and transported for chemical testing under suspicion of DUI. (*Id.* at ¶ 17.) No charges were filed against Plaintiff, (*Id.* at ¶ 18) but the arrest triggered a parole hold and Plaintiff alleges that he feared for his safety while in custody awaiting arraignment. (*Id.* at ¶ 19.)

III. A MOTION TO DISMISS IS APPROPRIATE

A defendant may assert a defense that a complaint served upon him fails to state a claim upon which relief may be granted by way of a motion pursuant to Federal Rule of Civil Procedure 12(b)(6). The purpose of a motion to dismiss under Rule 12(b)(6) is to test the legal sufficiency of the claims asserted in the complaint. *Navarro v. Black*, 250 F.3d 729, 732 (9th Cir. 2001). Although a complaint does not need to state detailed factual allegations, "a plaintiff's obligation to provide the grounds of his 'entitlement to relief' requires more than labels and conclusions, and a formulaic recitation of the elements of a cause of action will not do." *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 555 (2007). A complaint that alleges "naked assertions" that are "devoid a further factual enhancement" will not suffice. *Ashcroft v. Iqbal*, 556 U.S. 662, 667 (2009). Although generally in reviewing a motion to dismiss the court must accept as true all allegations contained in the subject Complaint, "threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice." *Id*. at 678.

IV. ARGUMENT

A. Defendants Meza-Gonzalez and Melano are Entitled to Qualified Immunity for Plaintiff's Claims Against Them in Their Personal Capacities.

"Qualified immunity shields federal and state officials from money damages unless a plaintiff pleads facts showing (1) that the official violated a statutory or constitutional right, and

(2) that the right was clearly established at the time of the challenged conduct." *Ashcroft v. al-Kidd*, 563 U.S. 731, 735 (2011); accord *Chavez v. Robinson*, 12 F.4th 978, 995 (9th Cir. 2021).

1. No constitutional violation exists under facts pled by the complaint.

To establish a claim of unlawful search and seizure and violation of due process, Plaintiff must assert Defendants did not have probable cause to effectuate a search of Plaintiff's vehicle and/or arrest Plaintiff. "[A] warrantless arrest [or search] by a law officer is reasonable under the Fourth Amendment where there is probable cause to believe that a criminal offense has been or is being committed." *Devenpeck v. Alford,* 543 U.S. 146, 152 (2004) (citations omitted). Probable cause exists when a prudent person would have concluded there was a fair probability that the suspect had committed a crime, based on the totality of the circumstances known to the officer. *Crowe v. County of San Diego*, 608 F.3d 406, 434 (9th Cir. 2010). However, fair probability does not require "certainty or even a preponderance of the evidence." *United States v. Gourde*, 440 F.3d 1065, 1069 (9th Cir.2006). Whether probable cause existed on the facts known to the defendant is a question of law for the court. *Roberts v. McAfee*, *Inc*., 660 F.3d 1156, 1164 (9th Cir. 2011).

California Vehicle Code section 23152(a) prohibits anyone from driving a vehicle while under the influence of alcohol. (Cal. Veh. Code § 23152(a)).

The allegations in Plaintiff's Complaint regarding the search of Plaintiff's vehicle and Plaintiff's subsequent arrest are as follows:

1. Defendants Meza-Gonzalez and Melano encountered Plaintiff while he was "resting" in his vehicle on the side of Interstate 580 East at approximately 12:54 a.m. on November 1, 2024. (Complaint ¶ 10.)

2. Defendants Meza-Gonzalez and Melano observed a cup in the center console of Plaintiff's vehicle, and one officer remarked: "I think it's booze." (Complaint ¶ 11.)

3. Plaintiff was subsequently ordered out of his vehicle, questioned, and subjected to field sobriety tests. (Complaint ¶ 14.)

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4. Defendants Meza-Gonzalez and Melano conducted an "invasive" search of Plaintiff's vehicle, which included reaching into cupholders, examining the central console area, and scanning the footwells and floorboards of the vehicle. (Complaint ¶ 15.)

5. Plaintiff was placed in handcuffs and transported for chemical testing under suspicion of DUI and was read "chemical test advisements" as part of his arrest (Complaint ¶ ¶ 17, 18.)

Probable cause existed to search Plaintiff's vehicle and arrest Plaintiff on suspicion of DUI based upon the totality of circumstances as shown by the facts alleged in the Complaint. The Complaint alleges that the investigatory stop began when Defendants Meza-Gonzalez and Melano stated that they saw a cup of what they believed to be alcohol in Plaintiff's vehicle. (Complaint ¶ 11.) Defendants therefore had probable cause to believe that Plaintiff was in violation of California Vehicle Code section 23223, which prohibits possessing an open container of alcohol in a vehicle on a highway. (Cal. Veh. Code § 23223). Furthermore, Plaintiff was arrested for chemical testing only after Defendants conducted field sobriety tests and after Plaintiff (presumably) refused a breathalyzer test. (Complaint ¶ ¶ 17, 18.)

While Plaintiff's Complaint repeatedly denies that any signs of intoxication or evidence of a crime were found (Complaint ¶¶ 15, 16), these allegations are conclusory statements presented without factual support and are not entitled to the presumption of truth. *Iqbal*, 556 U.S. at 678. Notably, Plaintiff does not allege how he could have evaluated the results of his field sobriety tests or known whether he displayed certain signs of intoxication, such as bloodshot eyes, which would only be apparent to another observer.

For the reasons stated above, probable cause existed for both Plaintiff's arrest and the search of his vehicle. Therefore, Defendants Meza-Gonzalez and Melano are entitled to qualified immunity on all of Plaintiff's causes of action against them in their individual capacities.

2. No "clearly established" law exists to place defendants on notice that probable cause did not exist in the circumstances as pled in the complaint.

Assuming, *arguendo,* that no probable cause existed to support the search of Plaintiff's vehicle and/or for Plaintiff's arrest, Defendants Gonzalez and Melano would still be entitled to

qualified immunity as it was not "clearly established" that probable cause to search and arrest did not exist in the circumstances as pled by the Complaint.

Qualified immunity, as it relates to arrests, is afforded to officers if they had probable cause to make the arrest, or if the officers reasonably believed they had probable cause to make the arrest. *Rosenbaum v. Washoe County*, 663, F.3d 1071, 1076 (9th Cir. 2011). This applies to knowledge at the time, and not whether or not an independent prosecutor declined to press charges, or the plaintiff was found innocent. *Id.* An officer's decision to search or arrest is protected by qualified immunity unless "all reasonable officers would agree that there was no probable cause in this instance." *Johnson v. Barr* 79 F.4th 996, 1005 (9th Cir. 2023).

"While there does not have to be 'a case directly on point,' existing precedent must place the lawfulness of the particular arrest or search 'beyond debate.'" *District of Columbia v. Wesby,* 583 U.S. 48, 64 (2018) (quoting *al-Kidd*, 563 U.S. at 741). "The plaintiff bears the burden of proof that the right allegedly violated was clearly established at the time of the alleged misconduct." *Romero v. Kitsap Cty*., 931 F.2d 624, 627 (9th Cir. 1991)).

Here, there is no "clearly established" law that should have put Defendants Meza-Gonzalez and Melano on notice that all reasonable officers would believe that probable cause did not exist in the circumstances as pled in the Complaint. To the contrary, it is clearly established that probable cause exists when "a prudent person would have concluded there was a fair probability that the suspect had committed a crime, based on the totality of the circumstances known to the officer." *Crowe v. County of San Diego*, 608 F.3d 406, 434 (9th Cir. 2010). Here, Plaintiff's conclusory allegation that "no evidence of intoxication was found" notwithstanding, there is no "clearly established law" holding that probable cause for a vehicle search and/or arrest does not exist after Defendants Meza-Gonzalez and Melano found Plaintiff "resting" in his vehicle on the side of the freeway (Complaint ¶ 10), saw what appeared to be alcohol in the vehicle (Complaint ¶ 11), conducted field sobriety tests on Plaintiff (Complaint ¶ 14), and Plaintiff refused chemical testing (Complaint ¶ ¶ 17, 18).

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B. Plaintiff's *Monell* Claim Against the State and Official Capacity Claims Against Defendants Meza-Gonzales and Melano Fail as a Matter of Law Due to Eleventh Amendment Sovereign Immunity and Because the State is Not a Person Under Section 1983.

The Complaint brings a *Monell* liability claim against the State and brings claims against Defendants Meza-Gonzalez and Melano in their official capacities. (Complaint ¶¶ 7, 8, 24, 25.) Plaintiff's official capacity claims and *Monell* claim against the State are barred by the Eleventh Amendment and neither the State nor individuals sued in their official capacity qualify as "persons" under 42 U.S.C. section 1983.

A damages action against a state official in his or her official capacity is treated like a suit against the State itself. *Hartmann v. California Dep't of Corr. & Rehab*., 707 F.3d 1114, 1127 (9th Cir. 2013). That means absent consent from the State, "Eleventh Amendment immunity... shields state officials from official capacity suits." *Krainski v. Nevada ex rel. Bd. of Regents of Nevada Sys. of Higher Educ*., 616 F.3d 963, 967 (9th Cir. 2010). Although a narrow exception exists for prospective relief under the *Ex Parte Young* doctrine, Plaintiff seeks no prospective relief here (see Complaint Prayer for Relief). Because the State has not consented to this damages action, Eleventh Amendment sovereign immunity bars all claims against Defendants Meza-Gonzalez and Melano in their official capacity, as well as Plaintiff's *Monell* liability claim against the State.

Moreover, Plaintiff cannot sue the State or Defendants Meza-Gonzalez and Melano in their official capacity because the State is not a "person" under Section 1983 and the Complaint contains no claims for injunctive relief. As the Supreme Court explained in *Will v. Michigan Dep't of State Police*, 491 U.S. 58, 65 (1989), a "State is not a 'person' within the meaning of § 1983 ...[.]" Because "a suit against a state official in his or her official capacity is" essentially "a suit against the State itself," "officials acting in their official capacities are [not] 'persons' under § 1983" and thus cannot be sued under Section 1983. *Id*. at 71. For these reasons, Plaintiff's claims against Defendants Meza-Gonzalez and Melano in their official capacity and Plaintiff's *Monell* liability claim against the State in this damages-only action are not cognizable under Section 1983.

C. Plaintiff's Prayer for Attorneys' Fees and for Punitive Damages Should Be Stricken.

1. Plaintiff has not alleged facts supporting punitive damages.

Plaintiff's request for punitive damages should be stricken because Plaintiff has not alleged any facts giving rise to punitive damages. A Motion to Strike "may be used to strike any part of the Prayer for Relief when the damages sought are not recoverable as a matter of law." *Bureerong v. Uvawas*, 922 F.Supp. 1450, 1479 n. 34 (CD. Cal. 1996); *Wilkerson v. Butler*, 229 F.R.D. 166, 172 (E.D. Cal. 2005) (stating that "a motion to strike is appropriate to address requested relief, such as punitive damages, which is not recoverable as a matter of law.").

A jury can assess punitive damages in a federal Section 1983 action "when the defendant's conduct is shown to be motivated by evil motive or intent, or when it involves reckless or callous indifference to the federally protected rights of others." *Smith v. Wade*, 461 U.S. 30, 56 (1983). Here, Plaintiff's Complaint is devoid of any allegations that may support an award of punitive damages. Accordingly, Plaintiff's prayer for punitive damages found in Prayer for Relief #2 of the Complaint should be stricken.

D. Plaintiff is not entitled to attorneys' fees as a pro se litigant.

Plaintiff seeks attorneys' fees as part of his Prayer for Relief. (Complaint Prayer for Relief #3.) While 42 U.S.C. § 1988 allows for attorney's fees for plaintiffs who prevail in Section 1983 actions, an award of attorneys' fees is not available to pro se litigants. See *Kay v. Ehrler*, 499 U.S. 432, 438 (1991). Accordingly, Plaintiff's prayer for attorneys' fees found in Prayer for Relief #3 of the Complaint should be stricken.

V. CONCLUSION

For the foregoing reasons, Defendants respectfully request that the Court dismiss all claims within Plaintiff's Complaint with prejudice and strike Plaintiff's prayer for punitive damages and attorneys' fees from the Complaint.

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Dated: December 10, 2025

Respectfully submitted,

ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General

/s/ Haiyang Allen Li

HAIYANG A. LI
Deputy Attorney General
Attorneys for Defendants
State of California, acting by and through the California Highway Patrol, Santiago Meza-Gonzalez and Jose Melano

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CERTIFICATE OF SERVICE

Case Name: **Brendan N. Newanforbi v. State of California, et al.** No. **2:25-cv-01460-DC-CSK**

I hereby certify that on December 10, 2025, I electronically filed the following documents with the Clerk of the Court by using the CM/ECF system:

DEFENDANTS' NOTICE OF MOTION AND MOTION TO DISMISS COMPLAINT WITH MOTION TO STRIKE; MEMORANDUM OF POINTS AND AUTHORITIES

I certify that **all** participants in the case are registered CM/ECF users and that service will be accomplished by the CM/ECF system.

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on December 10, 2025, at Los Angeles, California.

Adriana Zagal
Declarant

Signature

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